

Tripura Food (Restrictions on Service of Meals by Catering Establishments) Order, 1973

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[Rule TRIPURA-FOOD-RESTRICTIONS-ON-SERVICE-OF-MEALS-BY-CATERING-ESTABLISHMENTS-ORDER-1973 of 1973](#)

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Whereas the State Government is opinion that for the maintenance and increase of supplies essential to the life of the community, it is necessary to regulate the use and consumption of certain foodstuffs ;

Now, therefore, in exercise of the powers conferred by Section 3 of the Essential Commodities, Act, 1955 (10 of 1955) read with Order No. G.S.R. 316 (E), dated 20th June, 1972, issued by the Government of India in the Ministry of Agriculture (Department of Food) the Governor is pleased to make the following Order, namely:

1.

(1)

This Order may be called the Tripura Food (Restrictions on Service of Meals by Catering Establishments) Order, 1973.

(2)

It extends to the whole of Tripura.

(3)

It shall come into force with immediate effect.

2.

In this Order unless the context otherwise requires-

(a)

"catering establishment" includes a hotel, restaurant, eating house cafe, tea-shop, coffee-stall, free feeding centre, club, boarding house, canteen, railway refreshment room or restaurant car and other place of refreshment open to the public ;

(b)

"substantial dish" means a dish described as such in the Schedule to this Order;

(c)

"subsidiary dish" means a dish describes as such in the Schedule to this Order.

3.

No proprietor or other person in charge of a catering establishment shall supply for consumption or offer or attempt to supply for consumption, and no person shall obtain or consume or attempt to obtain or consume, at a catering establishment as or for the purposes of a meal more than two courses, whether served successively in European style or served together in Indian style or placed together in display for self help style of buffet type meal. The two courses shall consist of

(i)

one substantial dish and one subsidiary dish ; or

(ii)

two subsidiary dishes.

4.

Notwithstanding anything contained in Clause 3, the following may be supplied by any proprietor or any person in charge of a catering establishment as part of a meal in addition to two courses, namely :

soup, biscuits, jam, marmalade, fruit, including iced fruit, fruit or vegetable juices, bhajji, papad, chatni, pickles; raita, preserves, onions, celery, ghee, butter, cream, curd, cheese, butter-milk sauce, custard dressings, and other condiments.

5.

The State Government may, for reasons to be recorded in writing, by order exempt any parties given by diplomatic or consular representatives or Governmental Missions of foreign countries in a catering establishment and parties arranged in connection with international conferences from the operation of any of the provisions of this Order.

6.

Power of entry, search, seizure, etc.

(1)

For the effective enforcement of the provisions of this Order, a Police Officer of or above the rank of Sub-Inspector may, when he has reason to believe that a contravention of this Order has been, is being or is to be committed, enter and search any premises, interrogate any person and seize any article including their coverings or containers in respect of which he has reason to believe that a contravention has been, is being, or is about to be committed.

(2)

The provisions of Sections 102 and 103 the Code of Criminal Procedure, 1898 (5 of 1898) shall, so far as may be, apply to searches and seizures under this clause.

7.

The Tripura Food (Restrictions on Service of Meals by Catering Establishments) Order, 1968, is hereby repealed :

Provided that such repeal shall not affect the previous operation of the said rules or any action taken thereunder.

The Schedule

1. Substantial dish. - A substantial dish shall be one consisting of fish or meat or poultry or game or curry preparation of any of these or curry preparation of vegetables and rice or pulao or chapatis or parathas or bhakarlis or nans or bread or

other preparation of wheat and wheat flour.

Note. - In all cases salad, dal and not more than two vegetables may be served as part of the substantial dish.

2. Subsidiary dish. - A subsidiary dish shall be any sweet dish or a savoury dish consisting mainly of vegetables or eggs.

A subsidiary dish shall not contain cereals.

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